



2026:AHC:137492-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 25795 of 2026

Saurabh Agarwal

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Keshav Kumar Srivastava, Saurav Mishra
Counsel for Respondent(s)	:	Baleshwar Chaturvedi, C.S.C.

Court No. - 5

**HON'BLE PRAKASH PADIA, J.
HON'BLE VIVEK SARAN, J.**

1. Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the electricity department and learned Standing Counsel for the respondent-State.
2. The petitioner has preferred present writ petition inter-alia with the prayer to quash the order dated 07.03.2026 passed by the respondent no.4- Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Ltd. Agra.
3. A preliminary objection has been raised by Sri Baleshwar Chaturvedi, learned counsel for the electricity department that against the impugned order statutory alternative remedy is available to the petitioner to file an appeal before the Divisional Commissioner as provided under Section 127 of the Electricity Act, 2003 hence present writ petition is liable to be dismissed.
3. From perusal of the record it transpires that petitioner earlier approached this Court by filing a petition being Writ C No.10132 of 2025, which was disposed of finally vide judgement and order dated 24.04.2025. The order dated 24.04.2025 reads as follows :-

"Heard Sri H.N. Singh, learned Senior Counsel appearing along with learned counsel, Sri Saumitra Anand and Sri Shishir Singh Yadav, in support of this petition and Sri P.N. Rai, learned counsel appearing on behalf of the Electricity Department.

This is a writ petition under Article 226 of the Constitution of India, wherein the following primary

prayers have been prayed for, by the writ petitioner:

"I. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 19.06.2023 purportedly passed under Section 126 of the Electricity Act read with the Electricity Supply Code (Annexure-1 to the writ petition).

II. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 23.06.2023 also purportedly issued under Section 126 of the Electricity Act read with the Electricity Supply Code (Annexure-2 to the writ petition).

III. Issue a writ, order or direction in the nature of certiorari for quashing the order dated 20.10.2023 passed by the respondent no. 4 vide Patrank No. 5865/V.V.Kh./bah whereby a purported final assessment notice had been issued upon the petitioner (Annexure-3 to the writ petition).

IV. Issue a writ, order or direction in the nature of mandamus directing the Respondents not to take any coercive action against the Petitioner and also restrain them from making any recovery from the Petitioner in pursuance of the impugned orders."

It appears that after passing of the orders dated 19.06.2023 and 23.06.2023, a demand notice dated 25.11.2024, was also issued. The petitioner, aggrieved by the aforesaid, has approached this Court and has not gone in appeal, as provided under the statute under Section 127 of the Electricity Act. The reasons cited by the petitioner for non-filing of the appeal is that a deposit of 50% of the amount, was required to be paid for filing of the said appeal.

Having regard to the aforesaid facts and circumstances and upon consideration of the arguments advanced by both the parties, we are of the view that the impugned order and the demand notice be stayed for a limited period, with a direction given upon the petitioner to file a fresh representation before the authority concerned viz. the authority who has passed the assessment orders. It is directed that upon such a representation being made by the petitioner, within a period of one week from date, the authority concerned shall consider the representation of the petitioner and pass a fresh order after granting proper opportunity of hearing to the petitioner. The order so passed, essentially, should be a reasoned one and that order shall be treated as being a final assessment made, with respect to the petitioner.

The petitioner is directed to deposit 25% of the amount mentioned in the demand notice, before the authority concerned, for the matter being heard de novo. This amount of 25% shall be deposited along with the fresh representation being made by the petitioner. The authority concerned shall complete the entire process within a period of six weeks from date.

In the meantime, no coercive measure shall be taken against the petitioner.

With the above observations, this writ petition is disposed of."

4. It is argued by counsel for the petitioner that pursuant to the aforesaid 25 % amount has already been deposited by the petitioner.

5. From perusal of the aforesaid it is clear that in place of filing of appeal

petitioner was directed to submit representation which has now been rejected by the authorities.

6. In this view of the matter, we are of the prima facie opinion that petition is liable to be dismissed on the ground of availability of statutory alternative remedy.

7. In this view of the matter, present writ petition is disposed of finally with the observation to the petitioner to file an appeal before the Divisional Commissioner as provided under Section 127 of the Electricity Act, 2003 within a period of three weeks from today along-with bank draft of Rs.10 lacs in addition to 25% amount already deposited pursuant to the order dated 24.04.2025. If it is so, the appellate authority is directed to consider and decide the same expeditiously and preferably within a period of two months from the date of receipt of appeal.

8. Till disposal of the appeal no coercive action be taken against the petitioner pursuant to the order impugned.

(Vivek Saran,J.) (Prakash Padia,J.)

July 9, 2026
Pramod Tripathi